

It cannot be determined from the allegations of the first amended complaint that Plaintiffs' first three causes of action are clearly and affirmatively barred by the statute of limitations. Plaintiffs alleged that they purchased their vehicle on November 4, 2017 with the warranties given as set forth in Exhibit A of the pleading, including a five-year powertrain warranty covering the engine. (FAC, ¶¶ 10-11, Exh. A.) Plaintiffs alleged that on August 4, 2022 (within five years of purchase), they presented the vehicle to an authorized repair facility for warranty repair for a check engine light and a malfunction in the remote start feature, resulting in "warranty repairs including replacing the evap purge line assembly." (FAC, ¶ 16.) Despite representation that the vehicle had been repaired and working as intended, Plaintiffs alleged that they "continued to experience symptoms of the defects. (FAC, ¶ 21.) The complaint was filed within four years of discovery of the defect and alleged failure to repair or conform the defect to warranty.

Additionally, Plaintiffs do not allege any actual dates on which Defendant is alleged to have failed to commence repairs within a reasonable time or complete repairs within 30 days in violation of Civil Code section 1793.2(b) or to have failed to make available sufficient service literature and replacement parts to authorized service and repair facilities during the express warranty period. In fact, no actual defect or malfunction could be reproduced during inspection during December 7, 2017 (and therefore no repair could be commenced nor completed and no service literature or parts could have been insufficient) when the vehicle was first presented for repair, and all other dates the vehicle was presented for repair are within four years of commencement of this suit.

Lastly, breach of the implied warranty of merchantability usually occurs at the time a product is sold or delivered, but may be breached by a latent defect that is undiscoverable at the time of sale. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304.) The Song-Beverly Act provides a duration of up to one year for the implied warranty, during which time the warranty may be breached. (*Id.* at 1309.) Consequently, absent delayed discovery or some other basis for tolling or exception, the statute of limitations had to have run by November 4, 2022. But, Plaintiffs have adequately pleaded delayed discovery by alleging that the vehicle had been sold with latent defects (FAC, ¶ 69), including an engine defect (FAC, ¶ 30), that they presented the vehicle for repair for engine issues on multiple occasions (FAC, ¶¶ 16-20), and that Plaintiffs were repeatedly told that the vehicle had been repaired but continued to experience symptoms of the defects (FAC, ¶ 21).

ANEISHA GREEN vs. WILSHIRE LAW FIRM
Case No. CU25-06166

Plaintiff's Motion to Compel Defendant's Further Response to Requests for Production,
Set Three

TENTATIVE RULING

THE PARITES ARE TO APPEAR FOR THE REASON STATED BELOW.

Plaintiff ANEISHA GREEN moves to compel Defendant WILSHIRE LAW FIRM to further respond to four requests for production of documents within her third set of requests. The parties agree that code-compliant further responses have been provided.

Code of Civil Procedure section 2031.310, subdivision (h) requires sanctions against a party that unsuccessfully makes or opposes a motion to compel further responses to requests for production, unless the court finds that the losing party acted with substantial justification or that other circumstances weigh against the imposition of sanctions. Defendant's further responses were only provided after this motion was filed. Defendant does not provide substantial justification for failing to provide further responses earlier in order to avoid motion practice.

Plaintiff's motion is granted as follows: sanctions are imposed against Defendant in the amount of \$560.00 (reasonable attorney's fee plus \$60.00 filing fee.) The sanctions are due and payable within thirty days of the date of service of this order.

THE PARTIES ARE TO APPEAR TO UPDATE THE COURT ON THE STATUS OF THE ADDITIONAL DISCOVERY MOTIONS THAT HAVE BEEN FILED BY PLAINTIFF AND DEFENDANT.

NORMAN ROSS DEYOUNG, JR. vs. ELECTRONIC ARTS, INC.
Case No. CU25-07681

ELECTRONIC ART's Demurrer to Second Amended Complaint

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

JABIL PROCUREMENT SERVICES, INC. vs. HARBINGER PRODUCTION, INC.
Case No. CU26-00776

Motion to be Relieved as Counsel

TENTATIVE RULING

The unopposed motion to withdraw by Counsel for Defendant HARBINGER PRODUCTION, INC. is granted.

The case management conference for January 14, 2027 at 9:00 a.m. is confirmed.
